

BECM 3107

CONSTRUCTION CONTRACT AND LAW

Introduction - Term Final Study Guide

Easy explanation • প্রয়োজনীয় বাংলা অর্থ • Memorizing techniques

MCQ • Probable questions • Last-minute revision

Based strictly on the uploaded "1.0 - Introduction" lecture slides

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1. How to Use This Guide

এই গাইডটি কীভাবে পড়বেন

Source scope - গুরুত্বপূর্ণ

এই lectureটি একটি introductory overview. এতে course contents, objectives, outcomes, marks distribution, construction contract-এর basic definition এবং construction law-এর basic definition আছে। তাই এই guide-এ source-এর বাইরে detailed legal rules যোগ করা হয়নি।

Three-pass study method - ৩ ধাপে পড়ুন

1. Understand: প্রথমে সহজ explanation পড়ুন এবং প্রতিটি key term-এর বাংলা অর্থ দেখুন।
2. Recall: বই বন্ধ করে mnemonic বা memory code ব্যবহার করে points বলুন।
3. Write: probable question দেখে 5-7 লাইনের structured answer লিখুন।

Master map of the lecture

Part	What you must remember
Course overview	Course contents, objectives, outcomes, references, marks and class schedule
Construction contract	Definition and key elements: parties, work, payment, documents, rights and obligations
Construction law	Law, regulations and requirements governing construction and engineering projects

Fast memory code: O-C-L

O = Overview, C = Construction Contract, L = Construction Law. পুরো lectureকে শুধু “O-C-L” দিয়ে মনে রাখুন।

2. Course Contents, Objectives and Outcomes

কোর্সে কী পড়ানো হবে এবং কী শিখতে হবে

Course contents - মূল বিষয়সমূহ

- Working drawings, specifications এবং contract তৈরির জন্য প্রয়োজনীয় documents।
- Architectural/engineering drawings ও specifications-এর organization and use।
- Sequence of contract activities এবং bidding/contract documents প্রস্তুতি।
- Technical and building specifications ও inspection documents প্রস্তুতি।
- Submittals, contract changes, early termination, close-out এবং commissioning।
- Construction insurance, indemnity agreements, surety/bid/performance/payment/lien/warranty bonds এবং letters of credit।
- Construction management contracts, custom contracts এবং legal system concepts।

Objectives vs Outcomes - সহজ পার্থক্য

Term	Easy meaning
Objective - উদ্দেশ্য	Course আপনাকে কী শেখাতে চায়।
Outcome - ফলাফল	Course শেষে আপনি কী করতে পারবেন।

Memory technique: D-A-P-I-B-C

Documents - Activities - Procedures - Insurance - Bonds - Contracts. Course contents-এর বড় অংশ এই 6টি group-এ সাজান।

Three final outcomes

- Construction drawings, specifications এবং contract documents বুঝে practical work-এ ব্যবহার করা।
- Bidding, contracts এবং construction activities-এর বিভিন্ন stage prepare ও manage করা।
- Construction laws, insurance, bonds এবং contract procedures real project-এ identify ও apply করা।

3. Construction Contract - Easy Explanation

Construction contract কী?

Core definition

A construction contract is a legally enforceable agreement between two or more parties, usually the owner and the contractor. The contractor performs specific construction work according to defined drawings and specifications, and the owner pays under agreed terms and conditions.

সহজ বাংলা অর্থ

Construction contract হলো আইনগতভাবে বলবৎযোগ্য চুক্তি, যেখানে সাধারণত owner ও contractor থাকে। Contractor নির্ধারিত drawing ও specification অনুযায়ী কাজ করে, আর owner agreed terms and conditions অনুযায়ী payment করে।

The contract story - 4-step picture

Step	Meaning
1. Parties	Owner + Contractor
2. Work	Contractor performs specific construction work
3. Standard	Work follows drawings and specifications
4. Payment	Owner pays under agreed terms and conditions

Memory code: P-W-S-P

Parties - Work - Standard - Payment. Definition লিখতে এই 4টি word ভুলবেন না।

Mini example

একজন owner একটি ভবন নির্মাণের জন্য contractor-এর সঙ্গে চুক্তি করলেন। Contractor approved drawings/specifications অনুযায়ী কাজ করবে এবং owner agreed price ও payment terms অনুযায়ী অর্থ দেবে। এটিই একটি construction contract-এর basic structure।

4. Key Elements of a Construction Contract

পরীক্ষার সবচেয়ে গুরুত্বপূর্ণ তালিকা

Group 1 - Legal foundation (আইনগত ভিত্তি)

- Legally enforceable agreement - আইনগতভাবে বলবৎযোগ্য সমঝোতা।
- Two or more parties - দুই বা ততোধিক পক্ষ; সাধারণত owner এবং contractor।
- Mutual or reciprocal promises - উভয় পক্ষের পারস্পরিক প্রতিশ্রুতি।

Group 2 - Work and payment (কাজ ও অর্থ)

- Contractor agrees to perform the work - contractor কাজ সম্পাদনের প্রতিশ্রুতি দেয়।
- Work follows drawings and specifications - কাজ নির্ধারিত নকশা ও specification অনুযায়ী হবে।
- Owner agrees to pay - owner কাজের জন্য payment করবে।

Group 3 - Contract control (চুক্তির নিয়ন্ত্রণ)

- Terms and conditions cover time, cost, quality and responsibilities।
- Rights and obligations of each party are defined।
- Rules are provided for changes, delays and disputes।
- The contract is binding by law; failure may lead to legal action।

Best mnemonic: L-W-C

L = Legal foundation, W = Work and payment, C = Contract control. 10টি point আলাদা করে মুখস্থ না করে 3টি group মনে রাখুন।

One-line recall test

“Legal agreement between parties + work according to documents + payment and control rules.”

5. Drawings, Specifications and Contract Documents

তিনটি শব্দের সহজ পার্থক্য

Term	Easy Bangla meaning
Working drawings	কাজটি দেখতে কেমন হবে, dimensions ও technical layout কী - তা দেখানো নকশা।
Specifications	Materials, quality, workmanship এবং technical requirements-এর লিখিত বিবরণ।
Contract documents	চুক্তির অধিকার, দায়িত্ব, drawings, specifications, price, time এবং procedures নির্ধারণকারী নথিসমূহ।
Bidding documents	Tender/offer আহ্বান ও bid প্রস্তুতির জন্য ব্যবহৃত documents।
Inspection documents	কাজ পরীক্ষা, compliance এবং acceptance record করার documents।

Why they matter

- Drawings বলেন “কী ও কোথায়”; specifications বলেন “কীভাবে ও কোন মানে”।
- Contract documents parties-এর legal and practical responsibilities স্থির করে।
- Construction contract-এর কাজ defined drawings ও specifications অনুযায়ী হতে হবে।

Memory sentence

“Drawing দেখায়, Specification বোঝায়, Contract বাধ্য করে।”

Exam comparison line

Drawings are mainly graphical; specifications are mainly written technical requirements; contract documents create the complete legal and administrative framework.

6. Construction Law - Easy Explanation

Construction law কী?

Core definition

Construction law is the law that applies to and governs the execution of construction and engineering projects. It deals with laws, regulations and requirements in the construction industry.

সহজ বাংলা অর্থ

Construction law হলো এমন আইন, যা construction ও engineering project-এর execution বা বাস্তবায়নকে নিয়ন্ত্রণ করে এবং industry-এর laws, regulations ও requirements নিয়ে কাজ করে।

Scope shown in the slide

- Typical projects: buildings, houses, roads, railways and harbours।
- Other assets affixed to land - জমির সঙ্গে স্থায়ীভাবে যুক্ত assets।
- Analogous commercial areas where agreements are made to perform work and provide goods/services to create an asset or deliver a service।

Memory code: G-R-P

Governs execution - Rules and regulations - Projects and related commerce.

Construction contract vs construction law

Concept	Main focus
Construction contract	Specific parties-এর legally enforceable agreement।
Construction law	Industry ও project execution-কে governing legal framework।

7. Course Topic Roadmap

পুরো course-এর topic sequence

Nine-topic roadmap from the lecture

No.	Topic	Quick meaning
1	Construction Documents	নকশা, specification ও supporting documents
2	Construction Contract	Parties, work, payment, terms and conditions
3	Contract Administration	Contract বাস্তবায়ন ও management
4	Changes to the Work	কাজের পরিবর্তন ও related procedures
5	Termination	Construction contract আগেই শেষ করার procedure
6	Construction Insurance	Project risk-এর insurance protection
7	Surety Bonds & LOC	Performance/payment security এবং letter of credit
8	Indemnity Agreement	এক পক্ষের loss/liability অন্য পক্ষ বহন করার agreement
9	Commissioning & Close-out	Final testing, handover এবং project completion documents

Mnemonic chain: D-C-A-C-T-I-B-I-C

Documents -> Contract -> Administration -> Changes -> Termination -> Insurance -> Bonds -> Indemnity -> Close-out.

8. Important Vocabulary with Bangla Meaning

পরীক্ষায় প্রয়োজনীয় শব্দ

English term	বাংলা অর্থ
Legally enforceable	আইনগতভাবে বলবৎযোগ্য
Mutual / reciprocal	পারস্পরিক
Owner	মালিক / নিয়োগদাতা পক্ষ
Contractor	নির্মাণকাজ সম্পাদনকারী পক্ষ
Working drawing	কার্যকরী/নির্মাণ নকশা
Specification	প্রযুক্তিগত ও গুণগত লিখিত শর্ত
Terms and conditions	চুক্তির শর্তাবলি
Rights and obligations	অধিকার ও বাধ্যবাধকতা
Submittal	অনুমোদনের জন্য জমা দেওয়া document/material
Termination	চুক্তি সমাপ্তি
Close-out	প্রকল্প সমাপ্তির আনুষ্ঠানিক প্রক্রিয়া
Commissioning	System পরীক্ষা ও কার্যক্ষমতা নিশ্চিতকরণ
Liability insurance	দায়সংক্রান্ত বীমা
Indemnity agreement	ক্ষতি বা দায় বহনের চুক্তি
Surety bond	কাজ/দায় সম্পাদনের নিশ্চয়তা bond
Bid bond	Bid প্রত্যাহার বা ব্যর্থতার বিরুদ্ধে security
Performance bond	কাজ সম্পাদনের নিশ্চয়তা bond
Letter of Credit (LOC)	ব্যাংক কর্তৃক payment assurance

9. Marks Distribution and Exam Strategy

Slide-এর marks information অনুযায়ী

Component	Marks
Class Test	20 (after 5 cycles) + 10 (after 10 cycles) = 30
Attendance	10
Assignment/Homework	05
Term Final	105

What this means for term-final preparation

- Term Final-এর weight সবচেয়ে বেশি, তাই definitions এবং structured answers লিখতে practice করুন।
- Introduction lecture থেকে short definition, key elements, course scope এবং comparison question আসতে পারে।
- Marks অনুযায়ী answer length adjust করুন: 2 marks = definition; 5 marks = definition + elements; 10 marks = definition + explanation + comparison/application।

Answer formula: D-E-E-C

Definition - Elements - Explanation - Conclusion. 5 বা 10 marks-এর উত্তর এই structure-এ লিখুন।

Spaced revision plan

Time	Task
Day 1	Read and highlight keywords
Day 2	Recall O-C-L, L-W-C, G-R-P without notes
Day 4	Write 3 probable answers
Day 7	Take the MCQ test and revise weak words

10. Probable Written Questions

সম্ভাব্য প্রশ্ন ও answer points

1. Define a construction contract.

Answer points: Legally enforceable agreement; owner and contractor; specific work; drawings/specifications; payment; agreed terms.

2. Explain the key elements of a construction contract.

Answer points: Use L-W-C: legal foundation, work/payment, contract control.

3. Define construction law and explain its scope.

Answer points: Governs execution; laws/regulations/requirements; buildings, roads, railways, harbours and related commercial work/services.

4. Distinguish construction contract from construction law.

Answer points: Specific agreement between parties versus broader legal framework governing the industry and project execution.

5. Explain the importance of drawings and specifications.

Answer points: Drawings show layout/dimensions; specifications state materials, quality and technical requirements; work must follow both.

6. Write the major course contents of BECM 3107.

Answer points: Documents, contract, administration, changes, termination, insurance, bonds/LOC, indemnity, commissioning/close-out.

7. Distinguish course objectives from course outcomes.

Answer points: Objectives = what the course intends to teach; outcomes = what students can do after learning.

Exam writing tip

Definition-এর exact legal keywords লিখুন: legally enforceable, parties, drawings and specifications, terms and conditions, rights and obligations.

11. MCQ Practice

নিজে উত্তর দিয়ে তারপর answer key দেখুন

1. A construction contract is primarily a:

- A. Social promise B. Legally enforceable agreement C. Drawing only D. Verbal instruction only

2. The usual parties are:

- A. Teacher and student B. Owner and contractor C. Bank and court D. Engineer and supplier only

3. The contractor performs work according to:

- A. Personal preference B. Drawings and specifications C. Newspaper ads D. Attendance sheet

4. Who agrees to pay for the work?

- A. Owner B. Contractor C. Inspector D. Third party

5. Construction law governs:

- A. Only property sale B. Execution of construction and engineering projects C. Only class tests D. Only drawing preparation

6. Which is part of contract control?

- A. Changes, delays and disputes B. Class schedule C. Reference book cover D. University logo

7. "Mutual promises" means:

- A. One-sided statement B. পারস্পরিক প্রতিশ্রুতি C. No obligation D. Payment only

8. Close-out is related to:

- A. Project completion B. Tender invitation only C. Starting excavation D. Course registration

9. L-W-C stands for:

- A. Law-Work-Control B. Legal foundation-Work/payment-Contract control C. Letter-Word-Case D. Liability-Warranty-Claim

10. Course outcomes describe:

- A. What students can do after the course B. Only reference books C. Class day and time D. Teacher contact details

Answer key

1-B, 2-B, 3-B, 4-A, 5-B, 6-A, 7-B, 8-A, 9-B, 10-A

12. One-Page Final Revision

পরীক্ষার আগে শেষবার দেখুন

Master codes

Code	Meaning
O-C-L	Overview - Construction Contract - Construction Law
D-A-P-I-B-C	Documents - Activities - Procedures - Insurance - Bonds - Contracts
P-W-S-P	Parties - Work - Standard - Payment
L-W-C	Legal foundation - Work/payment - Contract control
G-R-P	Governs execution - Rules/regulations - Projects
D-E-E-C	Definition - Elements - Explanation - Conclusion

Five must-write facts

- Construction contract is legally enforceable!
- Usually owner and contractor are the parties!
- Work must follow defined drawings and specifications!
- Owner pays under agreed terms and conditions!
- Construction law governs execution through laws, regulations and requirements!

30-second oral recall

Say this without looking

"A construction contract is a legally enforceable agreement between owner and contractor. The contractor performs specific work according to drawings and specifications; the owner pays under agreed terms. The contract defines time, cost, quality, responsibilities, rights, obligations and rules for changes, delays and disputes. Construction law is the broader law governing construction and engineering projects."

Final self-check

- Can I define construction contract in 3-4 lines?
- Can I explain L-W-C without notes?
- Can I distinguish contract, drawings and specifications?
- Can I define construction law and give project examples?
- Can I write the 9-topic course roadmap?